Miami County Common Pleas Court
05/02/2023 11:18 AM
Shawn M. Peeples
Clerk of Courts

IN THE COURT OF COMMON PLEAS
MIAMI COUNTY, OHIO

DANIELLE L. BAKER,	:	CASE NO. 23CV00117
Plaintiff,	:	JUDGE JEANNINE N. PRATT
v.	:	
OHIO'S HOSPICE INC., et al.	:	
Defendants.	:	

ANSWER OF DEFENDANT, ADMINISTRATOR,
BUREAU OF WORKERS' COMPENSATION

Now comes the Defendant, Administrator, Bureau of Workers' Compensation, and hereby answers the Plaintiff's Complaint as follows:

1. Defendant admits the allegations as set forth in paragraphs 3, and 4 of the Complaint.

2. Defendant denies the allegations as set forth in paragraph 5 of the Complaint.

3. Defendant admits the orders of the Industrial Commission to the extent that they are accurately reflected in paragraphs 2, 6, 7, 8, and 9 of the Complaint.

4. Defendant denies each and every allegation of the Complaint that has not been specifically admitted to be true.

DEFENSES

1. The Complaint fails to state a claim upon which relief can be granted.

2. The claim is barred by an applicable statute of limitations.

3. This court lacks subject matter jurisdiction over this cause of action.

4. The claim is barred by the doctrine of *res judicata*.

5. Plaintiff has failed to exhaust administrative remedies.

6. Plaintiff did not suffer the alleged injuries in the course of and arising out of employment with Defendant/Employer.

7. Any requested condition in the Complaint is not compensable under R.C. 4123.01.

8. Defendant reserves the right to assert affirmative defenses to the extent such defenses are discovered during the course of this litigation.

WHEREFORE, the above-named Defendant requests that Plaintiff be found not entitled to participate under the workers' compensation laws of Ohio.

Respectfully submitted,

DAVE YOST (0056290)
Ohio Attorney General

/s/ Barbara L. Barber
BARBARA L. BARBER (0068414)
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Counsel for Defendant, Administrator,
Bureau of Workers' Compensation

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Answer of Defendant Administrator, Ohio Bureau of Workers' Compensation was served on this 2nd day of May, 2023 to:

Via Email
James E. Gardner, Esq. - gardnerlaw@sbcglobal.net

Counsel for Plaintiff

Via U.S. Mail
Ohio's Hospice Inc.
7575 Paragon Road
Dayton, Ohio 45459

Defendant/Employer

/s/ Barbara L. Barber
BARBARA L. BARBER (0068414)
Principal Assistant Attorney General